NEW YORK | LOS ANGELES
MADERASURFACES.COM
sales@maderasurfaces.com
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TERMS & CONDITIONS OF PURCHASE

APPLICATION

These terms and conditions apply to any proposal, sale, and delivery of product from MADERA to the Purchaser. When the Purchaser pays a deposit invoice to confirm their order, they acknowledge that they have read, understood and accepted these Terms and Conditions of Purchase.

PROPOSAL AND ORDER CONFIRMATION

MADERA's proposals are valid for 30 days from the date of submission. Pricing, availability of materials, and lead times may be subject to change after the proposal has expired.

The Purchaser is responsible for verifying that all material specifications and takeoffs, including dimensions, grade, and quantity outlined in the proposal are accurate. The Purchaser is responsible for ordering the correct amount of material, including appropriate overages for cut-offs and on-site selection. The Purchaser is also responsible for ensuring that all custom product designs adhere to applicable codes and rules, including, but not limited to NFPA 80 requirements, ADA national and federal guidelines, and local and federal building codes. MADERA does not take any responsibility for, and disclaims all liability related to, issues that arise outside of the specific requirements of the proposal.

When the Purchaser has accepted the proposal, MADERA will send a deposit invoice for payment. The Purchaser must pay the deposit invoice in full to confirm the order. By paying this invoice, the Purchaser acknowledges that they have read, understood, and accepted these Terms and Conditions of Purchase.

TARIFFS AND PRICE ADJUSTMENTS

In the event that new or increased tariffs, duties, taxes, or other government-imposed fees are applied to wood products imported from any country outside the United States, MADERA reserves the right to adjust its pricing to reflect the increased costs. This may include:

• Adjustments to Future Orders: Prices on any new or unconfirmed orders may be revised to account for the impact of such tariffs.

• Adjustments to Existing Orders: For orders already placed but not yet fulfilled or delivered, MADERA reserves the right to charge an additional fee equivalent to the increased cost imposed by such tariffs. In such cases, customers will be notified of the change in advance and provided with an updated invoice reflecting the adjustment.

We are committed to transparency and will provide documentation or explanation of any such tariff-related increases upon request.

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PAYMENT TERMS

Standard Orders: Standard orders have a 60/40 payment structure. These orders require a 60% deposit payment to put the order into production. A balance invoice for the remaining 40% and any additional charges will be sent 8 weeks before delivery and is due Net 30. MADERA reserves the right to restock the product if a balance invoice is not paid on time. The Purchaser will not be refunded for the deposit payment if an order is restocked.

Rush Orders and Re-Orders: Rush orders with less than 6 weeks lead times and re-orders for existing projects must be paid in full to put the order into production.

MADERA and the Purchaser can negotiate special payment terms for larger and more complex orders. If the Purchaser needs to place an order into storage, all balance invoices must be paid in full. All payments are non-refundable, and extra material cannot be returned for a refund. Acceptable payment methods are checks, bank wire transfers, ACH bank transfers, and credit cards. Credit card payments are subject to a convenience fee. The Purchaser is responsible for payment of all taxes, city and state, unless they provide MADERA with a valid resale certificate.

STORAGE

MADERA can place orders into a 3rd party storage facility on behalf of the Purchaser if all balance invoices have been paid. MADERA will charge the Purchaser a monthly storage fee of $300 per pallet. Storage fees are assessed for the full month at the start of the month. For example, if the order is placed into storage on the 1st and is delivered on the 15th, the Purchaser will pay for the full month of storage. Storage fees are invoiced monthly and are due Net 15. All storage invoices must be paid in full before the order can be released and delivered to the Purchaser. MADERA reserves the right to restock the product if storage invoices are not paid on time. The Purchaser will not be refunded if an order is restocked.

Purchasers should be aware that many MADERA products are finished with reactive stains and oils that continue to evolve and mature over time as they are exposed to oxygen and light. This natural change is fundamental to the aesthetic of the product. Placing products in storage for long periods can have an adverse effect on this natural evolution and can change the color, tone, and finish of the product. MADERA is not responsible for any adverse effects on the color, tone, and finish of products that are kept in storage.

DELIVERY

Delivery is curbside by common carrier unless otherwise noted. Curbside does not include unloading material from the truck unless otherwise noted. The Purchaser is responsible for unloading the order from the truck and moving it to the installation

site. The Purchaser should ensure that they have the right equipment and staffing in place to manage unloading in a timely manner. Any waiting charge or other related expense borne by MADERA due to the Purchaser's failure to make such arrangements will be charged to the Purchaser separately.

Delivery times and dates are estimated and may vary depending upon clearance of final payment, coordination by the Purchaser, transit time, or inclement weather. The type of packaging and bundling method often varies according to the product.

If the Purchaser does not accept delivery on the date agreed upon with the shipping company for any reason other than rejection of material, the Purchaser will be responsible for all applicable redelivery charges, storage fees, and other charges incurred for canceling the delivery.

MADERA insures freight for coverage against any damage or loss during shipping. If the order is damaged during transit, MADERA will replace any damaged material as quickly as possible. MADERA does not take responsibility for any costs associated with delays due to shipping damage. The Purchaser assumes all risk from the time when delivery is made and is responsible for any damages or losses during unloading and storage at the installation site.

INSPECTION AND ACCEPTANCE OF MATERIAL

The Purchaser is responsible for inspecting the material for quality and confirming that the correct quantity was delivered within 7 days. This means that the packaging of the product must be opened and resealed until it is installed. If the Purchaser identifies a defect or discrepancy between the order as delivered and the signed proposal, they must notify MADERA immediately. Purchasers should NOT install, alter or finish any product if there are questions about potential defects, specifications or quantities. All claims must be submitted to support@maderasurfaces.com with the following information:

- A clear and detailed explanation of the defect or discrepancy
- Images of the material and suspected defects

If the Purchaser discovers or should have discovered a defect or discrepancy and fails to submit a claim within 7 days, they cannot claim it later. This also applies if the Purchaser damages the goods during unloading, storage, and installation. If a claim is submitted and defects or discrepancies are found and MADERA is liable, MADERA will replace the material promptly.

All material will be considered accepted by the Purchaser 7 days after delivery or upon installation, whichever occurs first. MADERA does not accept returns of materials after they have been accepted or if they have been installed or altered in any way.

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SITE CONDITIONS AND INSTALLATION

The quality and durability of all MADERA products depends on proper storage before use and correct installation and maintenance. The Purchaser is responsible for ensuring proper site and storage conditions to avoid damage to any MADERA products, following industry guidelines for installation, and using an accredited installer (e.g. NFWA for flooring.) This includes ensuring that all windows and doors have been installed, maintaining the correct relative humidity of the storage and installation site at all times, and protecting the product from damage. The Purchaser must adhere to the guidelines on acclimatization, installation, protection and maintenance as outlined in the MADERA Wood Guide. MADERA disclaims any responsibility for problems due to improper site and storage conditions, and improper installation and maintenance. Failure to comply with these requirements voids any warranties, express or implied.

DELAYS

Unless otherwise agreed, a delivery delay of up to 30 days due to MADERA is considered on time, and the Purchaser cannot claim against MADERA, cancel the order, or refuse the goods. MADERA will notify the Purchaser via email about three weeks before the expected delivery date, providing the option to postpone delivery. The Purchaser may postpone the delivery and MADERA will place the order in storage. Complete postponement of the original delivery date, including cases of successive postponements, may not exceed six months, unless MADERA agrees otherwise. If delivery is delayed due to force majeure, the delivery time will be extended accordingly.

WARRANTY

MADERA products come with a structural warranty guaranteeing that all products are free from manufacturing defects in milling and lamination for the lifetime of the product, subject to the limitations set forth in MADERA's limited warranty. Purchasers are responsible for reviewing MADERA's Limited Warranty for Floors and Paneling and Limited Warranty for Millwork on our website.

LIABILITY FOR DEFECTS

MADERA products are made of natural wood materials and variations in color, grain, number of knots, and other characteristics should be expected. Reclaimed wood products can have an extreme amount of variation. For reclaimed wood products, nail holes, cracks, checks and staining should be expected in addition to the standard variations described above. For this reason, differences may occur relative to the samples provided and product imagery on our website and marketing materials. These

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differences are not regarded as defects, and must be accepted by the Purchaser.
Quality and durability of MADERA products depend on proper storage before use and maintenance after installation. The Purchaser must store products in their packaging at the correct temperature and humidity, as instructed. Failure to follow these instructions, or using the product for unintended purposes voids any claims for defects.
If a MADERA product is found to be defective and it is impossible to correct the defect, MADERA will replace the material at no extra costs or refund the Purchaser an agreed upon amount based on the purchase price of the defective product. A Purchaser's claim against MADERA may not exceed the invoice amount for the products sold, whether due to defects or delay. MADERA is not liable for operating loss, loss of time, profit, income, or any other indirect loss resulting from the order, including losses from delays or defects

CLAIMS

If a Purchaser identifies a product defect after acceptance they should submit a claim as soon as possible. All claims must be submitted to support@maderasurfaces.com with the following information:

- A clear and detailed explanation of the defect
- Images of the material showing the defect

MADERA will review the claim and conduct a site visit to inspect the material and conditions at the installation site. MADERA will then attempt to resolve the issue with the Purchaser. If the Purchaser wishes to pursue a claim after this initial step, MADERA will engage, at its own cost, the services of a certified inspector to conduct a site inspection and determine the cause and merit of the claim (e.g. NWFA wood flooring inspector). If the inspection confirms that MADERA is liable for the product defect, MADERA will replace the material as quickly as possible or refund the Purchaser for the defective product as described above. If the inspection finds that the defect was caused by the Purchaser due to improper unloading, storage, installation, product use or maintenance, MADERA shall bear no responsibility or liability.

REPLACEMENT AND REFUNDS

If MADERA is found liable for a product defect, MADERA will replace the material or refund the Purchaser for the defective product as described above. Replacements and refunds will only be issued after the original product has been returned to MADERA and inspected for quantity and quality. If any of the original product is missing or damaged, the replacement and refund may be rejected or modified to reflect the value of the missing or damaged product.

RESOLUTION OF DISPUTES

MADERA and the Purchaser will attempt to resolve any dispute arising from or relating to the order or the products sold through the investigation of claims procedures described above. If this process does not resolve the dispute within thirty (30) days, then the Parties may submit their dispute to non-binding mediation before an approved American Arbitration Association Home Construction mediator in New York. If the Parties are unable to resolve the dispute through mediation, then the dispute shall be resolved by binding arbitration in New York in accordance with the Home Construction Arbitration Rules of the American Arbitration Association. If the Parties agree, the mediator involved in the Parties' mediation may be asked to serve as the arbitrator. The prevailing party in any arbitration shall, in the Arbitrator's discretion, be awarded its reasonable attorneys' fees and costs. Judgment on any arbitration award may be entered by any court having jurisdiction thereof.